

haste stolen my Ropes." & they founde y^e wordes & gaue 5^e dammages.

'An action of y^e case vpon an assumpsit was broughte by Heathe againste Ginkes for 10^{li}. to be p^d wthin a yeare after notice of dislike of a bargayne: y^e plaintiff layde y^e notice in September 27, 1601: y^e defend^{ts} sayes he did not giue notice that daye in manner *et forme prout*. y^e pl. takes issue that he did gyue notice that daye, & his euynce proues his notice in December 1601. yet allowed good by the Judge, for y^t y^e time was not matter of substance but circumstance; so of y^e place.

HEATHE
v.
GINKES
Assumpsit

'One was saued this assises wth y^e Judges spectacles: & 2 women were Condemned vpon 1^o *Jacob*. for eyther of them maryinge twooe husbandes.

Bigamy

'Muddles' sonne of Godstone¹ was executed for a Robbery Robberye.

'There was a tryall for y^e waye oute of y^e boroughe into S^t George's Feilde to Lambethe Mawshe & y^e banke side againste y^e Citie. George Knoke was a speciall wytnesse, three Aldermen were in y^e Courte & y^e Recorder, yet y^e tryall wente againste them.'

Right of
way

In Camera Stellata, coram consilio ibidem, Venetis, 11^o Octobr. 1605, Jacob. Regis 3^o.²

[p. 206]
1605
Oct. 11

Cause of hearing between Sir Edward Dimmok,³ plaintiff, and the Earl of Lincolne and Bradshawe, defendants. Bradshawe in time past was servant to Sir Robert Dimmocke, father of Sir Edward, and for reward of his service [Sir Robert] gave him a lease for years binding himself in £500 to perform the covenants. The Earl, being in malice

DIMMOK
v.
EARL OF
LINCOLN
and
BRADSHAWE
Maintenance
and
champerty

¹ Godstone is near Tandridge, where the Hawardes lived.

² Twelve Councillors and Judges were present.

³ Sir Edward Dymoke of Scrivelsby, King's Champion at the Coronation of James I. His father, Robert Dymoke, mar. Bridget, eldest

dau. of Edward Lord Clinton, afterwards Earl of Lincoln, by his first wife; the defendant, Henry, Earl of Lincoln, was son of Lord Clinton by his 2nd wife. The 'malice' referred to in the text is, no doubt, connected with this relationship. Sir Edward Dymoke died 1625.

1606
Oct. 11

with Sir Edward Dimmocke, procured some part of the land by assignment by indenture, and promised to have the statute for nonperformance of the covenants, and caused Bradshawe to extend the statute, and wrote to the Sheriff and jurors to extend it, and maintained the suit, and so committed maintenance and champerty. But Bradshawe, being the defendant, was never served with process, but kept in Dimmocke's house; and therefore the cause was adjourned until Bradshawe was produced in Court to answer the interrogatories *viva voce*.¹

THROG-
MORTEN
v
STAFFORD
and others
Misde-
meanour

[p. 209]

Sentence

Another cause of hearing between Sir Thomas Throgmorton, plaintiff, against Sir John Stafforde, Edward Poincs, and three others, defendants, for misdemeanour at the muster, principally against Edward Poincs.² At the general muster of trained men, one Chambers being called and present, Poincs said that he should not serve, being married to his sister, and drew his 'cemitere'; also his father Mathew Poincs, a man weak and aged, being a Justice of the Peace and one bound for his good behaviour, Edward Poincs signed³ a *supersedeas* with the hand and seal of his aged father, and made a recognizance, and returned it in the name of his father. And for this he was fined by the greater part of the Court 100 marks, imprisonment and [to be] bound for his good behaviour. Sir John Stafforde, being a Justice of the Peace, and having lost two bullocks, finding them in pasture, charged two men with stealing them. They denied it. He said they should be had before a Justice of the Peace to answer it. They refused to go, and he with a 'riding rodde' struck one of them 'crosse the face & made him to reele.' And for this he was fined £20, for it was a great offence because he was a Justice of the Peace and ought to keep the peace, and thus [he was] a bad example. But in the opinion of the Court it was a small cause, and fitter for another place

¹ See another case between the same parties, in which the Earl of Lincoln was plaintiff, *post*, May 6, 1607.

² See a cross bill between the same parties, *post*, p. 242.

³ *Assigne* in MS.

than this Court; malice was the cause of the complaint, but although malice be the accuser, justice should be the punisher. And by some [of the Court] Sir John Stafforde would be admonished and not punished. *Dignitas delinquentis auget peccatum*. For the other three defendants, who never answered, and [there is] no charge against them, the Court would consider what should be done, for notwithstanding the course of the Court has been that if there are several defendants, and [the charge] is proved against one, the others shall not have costs, yet the opinion of the Court was that these three should have costs, otherwise this would remain as a libel against them. And it does not suffice for the plaintiff to rove for defendants, but to be well advised and instructed who are offenders, and who not, at his peril; otherwise it would be mischievous, and such defendants would not be [capable of being] witnesses.

Malice, the
accuser;
Justice, the
punisher

In Camera Stellata, coram Consilio ibidem, Mercurij, 16 Octobr., 1605.¹

1605
Oct. 16
[p. 210]

Dagge, plaintiff, Dunkellin and others, defendants, for forging a warrant of the Sheriff and inserting special bailiffs' names after the warrant was sealed and delivered with blanks, and also for riot in rescuing process. For the first offence [he] was fined £20, and it was ruled that such an offence had been sentenced in this Court several times. The Lord Chancellor vouched Bostocke and Lecheford's case.² Bostocke was removed from the Commission [of the Peace] for granting a warrant with blanks and lending his name: for it is a great offence in any, but especially in the Sheriff, if he had been made a party, because it is commonly used that the Sheriff is sworn to serve and execute process by indifferent men. But as to the riot, it was clear, and it seemed that there was a riot on the other side if it had been complained of.

Dagge
v.
DUNKELLIN
and others
—
Forgery

Sentence

Another cause of hearing between ,³ plaintiff,

¹ Twelve Councillors and Judges were present.

² See *ante*, p. 108.

³ Blank in MS.

1605
Oct. 16

WARREN'S
case

Perjury,
misdemeanour and
practise

[p. 211]

Sentence

The Earl of
Northampton on
Usury

and Robert Warren the father and Robert Warren the son, defendants, for perjury and misdemeanour or practise. Robert Warren the son, having borrowed of the plaintiff £20 for one year, procured one Reache, an informer, and gave him money, and bound him by an obligation to prosecute this under the Statute of Usury, and bound himself also to the said informer by an obligation to prove this usury, and said that the plaintiff contracted for £20 lent for a year to have £22 and two days' work in the carriage of clay, which amounted to 10^s. And Warren the father was privy to all this, and simply allowed it, but did not practise nor procure it. Reche, the said informer, proceeded with an information in the Exchequer Chamber, and Warren the son, by oath there, proved the usury, which is the offence now complained of. Reche was not made a defendant [in this present case]. But Warren the son, hearing that they are sued in this Court, said to Reche: "Burne yo^r bonde & I will burne mine, & then we will sweare there was no bondes." But this was not complained of in the bill, but proved in the depositions [*liuers*], which shows good affection in Warren the son. And the bill complains of this as an offence, before the Statute by which it is to be punished, but not without less punishment than the Act enjoins, 5 Eliz. cap. 9, which is £20 fine, six months' imprisonment and perpetual disablement as a witness. The father, for consenting to the practise, was fined £100; the son 200 marks for the practise, 100 marks for the perjury, and the punishment of the Statute. On the sentence, the Earl of Northampton delivered a noble and religious speech against usury, condemning it as abominable by God's law and man's, and accursed both in the borrower and the lender, and it is an absurd distinction between biting usury and gentle usury, for he said that by the Scripture all manner of usury is prohibited. The Lord Chancellor agreed with him, and said that it is a great 'mistakinge' [to think] that usury of £10 for £100 is allowed by our law; not so; for by 13 Eliz. cap. 8, all manner of usury is prohibited; and so by the Law of God